

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 03/05/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email the department rendering the decision to request argument and to specify the issues to be argued. Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C25-02898
CASE NAME: KERRY MCLANE VS. MERCEDES-BENZ USA, LLC, A DELAWARE LIMITED LIABILITY COMPANY
*CASE MANAGEMENT CONFERENCE WILL TRAIL MOTION TO COMPEL ARBITRATION
FILED BY:
Parties to appear.

Law & Motion

2. 9:00 AM CASE NUMBER: C24-01458
CASE NAME: KHOI SENDEROWICZ VS. SPECIALIZED LOAN SERVICING, LLC
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: SENDEROWICZ, KHOI

TENTATIVE RULING:

Plaintiff Khoi Senderowicz seeks leave to file a First Amended Complaint to add allegations arising out of recently discovered information—both external and internal to the litigation—additional legal research, and to remove inapplicable claims. The Court has received no timely opposition.

Code of Civil Procedure § 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “‘inexcusable delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*) “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

“Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

Although this case has been pending for two years, it appears to the Court that this request is timely and appropriate. After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Plaintiff’s motion is granted. The First Amended Complaint is ordered filed. Plaintiff’s Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 5, 2026.

3. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: FREEDOM FOREVER, LLC

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings (“Motion”) filed by defendant Freedom Forever, LLC (“Defendant”). The Motion argues that the second cause of action (financial elder abuse), third cause of action (negligent misrepresentation), fourth cause of action (negligence), and fifth cause of action (Business and Professions Code, §17200), fail to state facts sufficient to constitute causes of action.

For the reasons set forth below, the hearing on the Motion is continued until **Thursday, April 23, 2026, at 9:00 a.m., in Department 10**. The parties shall meet and confer **by March 26, 2026**, and Defendant shall file the required “meet and confer” declaration showing compliance with Code of Civil Procedure section 439, subdivision (a), **by April 9, 2026**.